



SPONSOR: Sen. Pinkney & Sen. Townsend & Rep. Harris
Sens. Poore, Seigfried; Reps. Heffernan, K. Johnson,
Lambert, Morrison, Neal, Kamela Smith, Snyder-Hall

DELAWARE STATE SENATE
153rd GENERAL ASSEMBLY

SENATE BILL NO. 128

AN ACT TO AMEND TITLE 31 OF THE DELAWARE CODE RELATING TO DENTAL CARE FOR ADULT
MEDICAID RECIPIENTS.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

1 Section 1. Amend § 502, Title 31 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:

3 § 502. Definitions.

4 As used in this chapter:

5 (4) "Dental care" means payment of all or part of the costs on behalf of an eligible recipient for ~~preventive and~~
6 ~~restorative treatment which the Department of Health and Social Services authorizes by regulation.~~ diagnostic,
7 preventive, restorative, and periodontal services.

8 Section 2. Amend § 503, Title 31 of the Delaware Code by making deletions as shown by strike through and
9 insertions as shown by underline as follows:

10 § 503. Eligibility for assistance; amount; method of payment.

11 (b) *Medicaid*. — (1) Medical assistance may be granted to medically and financially eligible persons in
12 accordance with Titles IV-A, IV-E, XVI, and XIX of the Social Security Act (42 U.S.C. §§ 601 et seq., 1381 et seq., and
13 1396 et seq.), federally approved waivers of these sections of the act, and rules and regulations established by the
14 Department of Health and Social Services. Eligibility for and payment of medical assistance must be determined under
15 policies and regulations established by the Department of Health and Social Services. Eligibility standards, recipient copay,
16 and provider reimbursement must be set in accordance with state and federal mandates, state and federal funding levels,
17 approved waivers, and rules and regulations established by the Department. The amount of assistance in each case of
18 medical care must not duplicate any other coverage or payment made or available for the costs of such health services and
19 supplies. To the extent permitted by federal requirements, no annual or lifetime numerical limitations may be placed on
20 physical therapy or chiropractic care visits that are for the purpose of treating back pain.

21 (2) a. ~~Except as otherwise provided in paragraph (b)(2)b. of this section, the amount of assistance provided to~~
22 ~~an adult recipient for dental care must not exceed \$1,000 per year. The Department shall provide dental care for~~
23 ~~eligible adults.~~

24 b. ~~The Department may establish a review process through which extra benefit dollars, not exceeding an~~
25 ~~additional \$1,500 per adult recipient, may be authorized on an emergency basis for dental care treatments. The~~
26 ~~Department may not impose an annual monetary limit on dental care provided under paragraph (b)(2)a. of this~~
27 ~~section.~~

28 c. All payments for dental care treatments are subject to a \$3.00 copay for adult recipients.

29 Section 3. Within 90 days of the enactment of this Act the Secretary of the Department of Health and Social
30 Services shall submit a Medicaid State Plan Amendment to the Centers for Medicare & Medicaid Services.

31 Section 4. This Act takes effect immediately on enactment of this Act and is implemented on the date of
32 publication in the Register of Regulations of a notice by the Secretary of the Department of Health and Social Services
33 (“Department”) that the Department’s Medicaid State Plan Amendment is approved by the Centers for Medicare &
34 Medicaid Services.

SYNOPSIS

This Act requires the Department of Health and Social Services to submit a Medicaid State Plan Amendment to the Centers for Medicare & Medicaid Services to be allowed to provide comprehensive dental benefits to Medicaid-eligible adults.

Author: Senator Pinkney